



Fw: Formal Complaint: Handling of Harassment and Discrimination Case

3 messages

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Fri, 05 Dec 2025 at 17:52

To: Wilbur William Matthee <wilburmat@gmail.com>

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From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

To: Mapule Mashele <Mapule.Mashele@medscheme.co.za>, Thando Mandondo
<ThandoM@medscheme.co.za>

Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>, Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Bcc:

Date: Tue, 30 Sep 2025 08:46:00 +0200

Subject: RE: Formal Complaint: Handling of Harassment and Discrimination Case

Dear Mapule,

Thank you for your time no problem to have the meeting scheduled for tomorrow.

Good luck with the site visit.

Kind regards

Wilbur

From: Mapule Mashele <Mapule.Mashele@medscheme.co.za>
Sent: Tuesday, September 30, 2025 8:42 AM
To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>; Thando Mandondo <ThandoM@medscheme.co.za>
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Subject: RE: Formal Complaint: Handling of Harassment and Discrimination Case

Dear Wilbur

Hope you are well

Today I am fully booked – I am supporting a maternity program site visit.

If that's fine with you, I will set up time for us tomorrow 11:30-12:30?

Kind Regards

Mapule

From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Sent: Tuesday, September 30, 2025 8:38 AM
To: Mapule Mashele <Mapule.Mashele@medscheme.co.za>; Thando Mandondo <ThandoM@medscheme.co.za>
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Subject: RE: Formal Complaint: Handling of Harassment and Discrimination Case

Dear Mapule,

I hope you are well. Thank you for reaching out to me regarding my formal complaint. Yes, I was not in office due to an unfortunate mugging that took place while on my way to work yesterday morning.

I am back at office today and will make the necessary time available to meet with you today.

Thank you for your support.

Kind regards

From: Mapule Mashele <Mapule.Mashele@medscheme.co.za>

Sent: Monday, September 29, 2025 4:00 PM

To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>; Thando Mandondo <ThandoM@medscheme.co.za>

Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Subject: RE: Formal Complaint: Handling of Harassment and Discrimination Case

Dear Wilbur

Hope you are well

I would like to confirm that I have reviewed your complaint submitted regarding the incident of 23 September 2025. Thank you for taking the time to raise this matter formally. Please be assured that it is being treated with the seriousness and confidentiality it deserves.

As the next step, I would like us to connect in person to discuss your complaint further and to ensure I fully understand your perspective. This will also give you the opportunity to provide any additional information or context that may assist in the process.

I had set up a connect session for us today at 14:30 but I understand you are not in today. Please let me know your availability so that we can schedule a suitable time to meet.

Kind Regards

Mapule

From: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Sent: Monday, September 29, 2025 9:40 AM

To: Mapule Mashele <Mapule.Mashele@medscheme.co.za>; Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Cc: Thando Mandondo <ThandoM@medscheme.co.za>; Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Subject: RE: Formal Complaint: Handling of Harassment and Discrimination Case

Dear Mapule

Thank you for your intervention in the matter. Please feel free to reach out to @Sipokazi or myself for any assistance.

Kind Regards

Cheryl-D

From: Mapule Mashele <Mapule.Mashele@medscheme.co.za>
Sent: 29 September 2025 09:05
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Cc: Thando Mandondo <ThandoM@medscheme.co.za>
Subject: RE: Formal Complaint: Handling of Harassment and Discrimination Case

Dear Cheryl-Dawn

Thank you for bringing this to my attention. I will investigate it and revert.

Kind Regards

Mapule

From: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Sent: Friday, September 26, 2025 3:48 PM
To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>; Mapule Mashele <Mapule.Mashele@medscheme.co.za>
Cc: Thando Mandondo <ThandoM@medscheme.co.za>
Subject: FW: Formal Complaint: Handling of Harassment and Discrimination Case

Good day Wilbur

Thank you for meeting with me today and for taking the time to share your side of the matter, along with the context surrounding your formal complaint.

As discussed, your complaint will now be formally addressed in line with our company's established processes. The matter has been escalated to your Senior manager, [@Mapule Mashele](#) who will lead the investigation as part of the next steps to ensure impartiality and a timely resolution.

Please be assured that you will not be required to engage with your Team Leader (the individual against whom the complaint has been made) regarding this matter during this process, as we aim to maintain a safe and respectful environment for all parties involved.

We value the fact that you have come forward, and I want to reassure you that your complaint will be handled with the sensitivity, confidentiality, and seriousness it deserves.

Should you have any questions or need further support during this time, please don't hesitate to reach out. Thank you.

Kind Regards

Cheryl-D

From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Sent: 25 September 2025 16:54

To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Thando Mandondo <ThandoM@medscheme.co.za>

Subject: Re: Formal Complaint: Handling of Harassment and Discrimination Case

Yes, of course. Thank you.

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From: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Sent: Thursday, September 25, 2025 4:51:50 PM

To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>; Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Thando Mandondo <ThandoM@medscheme.co.za>

Subject: RE: Formal Complaint: Handling of Harassment and Discrimination Case

Hi Wilbur

Thank you for the information. Please can we connect so I can get a better understanding of the matter in order to advise on the best way forward.

I will set up time for us.

Kind Regards

Cheryl-D

From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Sent: 25 September 2025 16:33

To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Thando Mandondo <ThandoM@medscheme.co.za>

Subject: Re: Formal Complaint: Handling of Harassment and Discrimination Case

Hello Cheryl,

Thank you for your email and support. I am currently working from office. As a result of this incident, I requested to leave the office to get my mental health in order.

Kind regards

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From: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Sent: Thursday, September 25, 2025 4:30:12 PM

To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>; Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Thando Mandondo <ThandoM@medscheme.co.za>

Subject: RE: Formal Complaint: Handling of Harassment and Discrimination Case

Dear Wilbur

Thank you for submitting your formal complaint to me. I want to assure you that your concerns are being taken seriously and will be handled with the sensitivity, confidentiality, and seriousness they deserve.

You will not be required to meet with the manager you've raised concerns about. We will be assisting you directly in managing this process and will guide you through each step to ensure your wellbeing and the integrity of the process are maintained.

To help us proceed appropriately, could you please confirm, where are you currently or at present (physically or working from)?

Kind Regards



Cheryl-Dawn Modern

Senior HR Business Partner

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✉️ cheryl-dawnm@afrocentrichealth.com

📍 37 Conrad St, Florida North, Roodepoort | PO Box 1101, Florida Glen, 1709

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From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Sent: 25 September 2025 16:08

To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Thando Mandondo <ThandoM@medscheme.co.za>

Subject: Formal Complaint: Handling of Harassment and Discrimination Case

Importance: High

Dear Cheryl, and team

I am writing to raise a serious concern regarding how my recent complaint of sexual orientation discrimination and harassment has been managed.

After I reported this matter, I was informed that I should have a one-on-one meeting with the individual I reported, and that she would then provide feedback to her manager. I believe this approach is inappropriate and does not align with the principles of impartiality, confidentiality, or protection from retaliation, which are essential when dealing with sensitive cases of discrimination and harassment.

Key Concerns with Current Process

Meeting privately with the accused places me in a vulnerable position and creates the risk of further harassment or intimidation.

Having the accused “report back” on the outcome of the meeting undermines impartiality and fairness in the process.

Forwarding my report directly to the accused without first ensuring neutral oversight compromises confidentiality and objectivity.

Specific Incident of Sexual Orientation Discrimination and Harassment

On 23 September 2025, my manager deliberately posted in our work teams group a version of my name from “Wilbur” to “Wilma,” clearly referencing a female name, knowing that I am gay.

This was not a typo or accidental error, but a deliberate act intended to mock and embarrass me.

The post was made after working hours and immediately before the Heritage Day public holiday on 24 September 2025.

The manager then took two consecutive days off on 25 and 26 September 2025, ensuring that I could not address or respond to the issue immediately. She is only returning on Monday.

This action caused me significant upset, humiliation, and distress, and publicly undermined my dignity and identity.

The post also affected many of my colleagues, who expressed disgust and concern over my manager’s deliberate actions.

As a result of this incident, I found myself unable to focus or be productive at work. I requested from my manager's manager if I could leave the office for the day to manage my mental health. I was referred to another team leader, who informed me that my manager had instructed that if I leave, she will log it as a half-day unpaid leave, despite my willingness to work the two hours back to support my mental health. When I objected, the team leader told me I should consult with my manager on Monday.

This clearly demonstrates how the manager's deliberate actions directly impacted my ability to perform my work, caused undue stress, and created an environment that was hostile to my mental health.

Under South African law, this constitutes sexual orientation discrimination and harassment, violating both company policy and the legal protections afforded under the Employment Equity Act 55 of 1998 and the Protection from Harassment Act 17 of 2011.

Inconsistent Application of Disciplinary Policy

Our company's disciplinary policy clearly states that any form of harassment warrants dismissal.

At a minimum, best practice requires that the accused be suspended on full pay pending investigation.

Despite this, the manager I reported has been allowed to continue in her role, while I remain in a compromising position.

This situation suggests:

The company is safeguarding the accused instead of applying its own policy consistently.

I remain exposed to further harassment, intimidation, or retaliation.

The credibility of the disciplinary process and grievance procedures is being undermined.

Requests and Expectations

I respectfully request that:

1. This matter be handled by a neutral HR representative or independent investigator, rather than the individual I reported.
2. I not be required to meet privately with the accused.
3. The manager be suspended pending investigation, in accordance with company policy.
4. The process be conducted in a way that ensures impartiality, confidentiality, and protection from retaliation.
5. I be immediately removed from this manager's team to prevent further exposure to harassment or a hostile work environment.

Legal Reminder

Under the Employment Equity Act 55 of 1998, harassment on the basis of sexual orientation constitutes unfair discrimination.

The Labour Relations Act 66 of 1995 requires fair labour practices.

The Protection from Harassment Act 17 of 2011 safeguards against conduct that could reasonably cause harm or distress.

Please confirm in writing how the company intends to proceed to ensure this complaint is managed fairly, lawfully, and in compliance with company policy and South African labour legislation.

If the matter is not addressed appropriately, I may have no option but to escalate this complaint to the CCMA or other relevant authorities.

Thank you for your urgent attention to this matter.

Sincerely,

Wilbur Matthee

 **RE_ Formal Complaint_ Handling of Harassment and Discrimination Case.eml**
131 KB

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: wilburmat@gmail.com <wilburmat@gmail.com>

Fri, 05 Dec 2025 at 17:57

[Quoted text hidden]

 **RE_ Formal Complaint_ Handling of Harassment and Discrimination Case.eml**
131 KB

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>

Sat, 06 Dec 2025 at 22:01

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From: Tebogo Dikobe <Tebogo.Dikobe@afrocentrichealth.com>

To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Cc:

Bcc:

Date: Tue, 30 Sep 2025 12:57:13 +0200

Subject: RE: Formal Complaint: Handling of Harassment and Discrimination Case

Hi Wilbur

I have shared this with Sipo and will look into it.

Regards

Tebogo Dikobe (He/Him/His)

Human Resource Officer

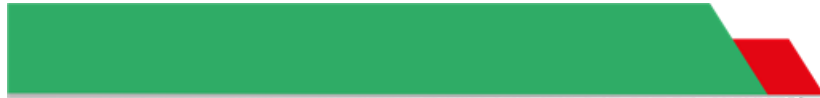
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🌐 [Tebogo M Dikobe | LinkedIn](#)



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From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Sent: Thursday, September 25, 2025 4:11 PM
To: Tebogo Dikobe <Tebogo.Dikobe@afrocentrichealth.com>
Subject: Fw: Formal Complaint: Handling of Harassment and Discrimination Case

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From: Wilbur Matthee
Sent: Thursday, September 25, 2025 4:07:42 PM
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Thando Mandondo <ThandoM@medscheme.co.za>
Subject: Formal Complaint: Handling of Harassment and Discrimination Case

Dear Cheryl, and team

[Quoted text hidden]

2 attachments



image004.png

29 KB



RE_ Formal Complaint_ Handling of Harassment and Discrimination Case.eml

106 KB